

Court No. - 3

Case :- WRIT - C No. - 20429 of 2022

Petitioner :- Naim Akhtar Khan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Saqib Meezan

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Surendra Singh-I,J.

Heard learned counsel for the petitioner, learned standing counsel for the State - respondents and Sri Alok Mishra, learned counsel for the respondent no.3.

This writ petition has been filed praying for the following reliefs:

"i) Issue a writ, order or direction in the nature of Certiorari quashing the impugned order dated 28.01.2022 passed by respondent No.3 (Annexure No.11 to the writ petition).

ii) Issue an appropriate writ, order or direction in the nature of Mandamus directing the respondent No.3 to consider the request of the petitioner to deposit the amount of Electricity Dues in easy installments, within specific time frame, fixed by this Hon'ble Court."

We have perused the impugned order and we find that in terms of para 6.14 of the U.P. Electricity Supply Code, 2005, the respondent no.3 has granted facility of payment of dues by the petitioner in two instalments. The impugned order does not suffer from any manifest error of law. Therefore, it can not be interfered with in writ jurisdiction under Article 226 of the Constitution of India.

Writ petition is dismissed.

Order Date :- 17.8.2022/vkg